

Code Civ. Proc., §§ 2030.290(c), 2031.300(c). Defendant failed to serve timely responses to plaintiff's RFAs. His failure to do so necessitated plaintiff's motion; thus, sanctions are required.

Plaintiff requests \$2,750.00 in attorney's fees and anticipated costs of \$100 and submits a declaration in support thereof. The Court finds the requested fees are reasonable and grants the same as prayed. Costs are also awarded for the \$60 filing fee. Total fees and costs of \$2,810.00 shall be paid within 30 days of service of the final order.

3. CU0001902 Travis Gould vs. PHH Mortgage Corporation, et al.

On the Court's motion, this hearing is continued to March 9, 2026, at 10:00 a.m.

Plaintiff Travis Gould's January 20, 2026, motion to compel answers to interrogatories and to deem facts as admitted against Defendants is denied.

Plaintiff asserts his "first round of discovery was propounded to all the Defendants on July 1, 2025." Mot., 2:7-8. Defendants contend they responded to the same with objections on August 4, 2025. Palmieri Decl. ¶ 4. Plaintiff, however indicates that the original discovery requests were *withdrawn* on August 20, 2025, and then served again reportedly on September 24, 2025. 2/27/26 Vodonik Decl. ¶¶6-8. No proof of service has been provided as to the same. In any event, the parties agree that an extension to respond to discovery was granted by Plaintiff to Defendants until November 19, 2025 due to ongoing settlement efforts. Vodonik Dec., Ex. B; Palmieri Decl. ¶ 6.

Under Code of Civil Procedure sections 2030.300(c) (interrogatories), and 2033.290(c) (requests for admissions), unless notice of a motion to compel further responses is given within 45 days of the service of the responses, or any specific later date to which the parties have agreed in writing, the propounding/requesting party waives any right to compel a further response to the interrogatories, or requests for admission.

Plaintiff's deadline to compel responses to the discovery requests was Monday, January 5, 2026 (given that the 45th day fell on January 3, 2026). Plaintiff filed its motion on January 20, 2026. Accordingly, the motion is untimely and Plaintiff waived his right to compel further responses.

Plaintiff unsuccessfully made the instant motion. There has been no showing that there was substantial justification for the motion or that imposition of sanctions would be unjust. *See* Code Civ. Proc. §§ 2030.300(c), 2033.290(c). Defendants seek sanctions for 5 hours of attorney time without specification of a reasonable rate. The Court finds that Defendants are entitled to monetary sanctions from Plaintiff in the amount of \$1,200.00 (4 hours at \$300/hour).

4. CU0002271 Christine Jones vs. Nationstar Mortgage LLC, et al.

On the Court's motion, this hearing is continued to March 9, 2026, at 10:00 a.m.